

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1689

By: Worthen

AS INTRODUCED

An Act relating to crimes and punishments; amending
21 O.S. 2021, Section 1702, which relates to larceny
of lost property; making certain acts unlawful;
providing penalties; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 21 O.S. 2021, Section 1702, is
amended to read as follows:

Section 1702. A. One who finds lost property under
circumstances which gives ~~him~~ the person knowledge or means of
inquiry as to the true owner, and who appropriates such property to
his or her own use, or to the use of another person who is not
entitled thereto, without having first made such effort to find the
owner and restore the property to ~~him~~ the owner as the circumstances
render reasonable and just, is guilty of larceny punishable as
follows:

1 1. If the value of the property is less than One Thousand
2 Dollars (\$ 1,000.00), the person shall be guilty of a misdemeanor
3 punishable by imprisonment in the county jail not to exceed one (1)
4 year, or by a fine not to exceed Five Hundred Dollars (\$500.00), or
5 by both such imprisonment and fine;

6 2. If the value of the property is One Thousand Dollars
7 (\$1,000.00) or more but less than Two Thousand Five Hundred Dollars
8 (\$2,500.00), the person shall be guilty of a felony punishable by
9 imprisonment in the custody of the Department of Corrections not to
10 exceed two (2) years, or in the county jail not to exceed one (1)
11 year, or by a fine not to exceed One Thousand Dollars (\$1,000.00),
12 or by both such imprisonment and fine;

13 3. If the value of the property is Two Thousand Five Hundred
14 Dollars (\$2,500.00) or more but less than Fifteen Thousand Dollars
15 (\$15,000.00), the person shall be guilty of a felony punishable by
16 imprisonment in the custody of the Department of Corrections not to
17 exceed five (5) years, or in the county jail not to exceed one (1)
18 year, or by a fine not to exceed One Thousand Dollars (\$1,000.00),
19 or by both such imprisonment and fine; and

20 4. If the value of the property is Fifteen Thousand Dollars
21 (\$15,000.00) or more, the person shall be guilty of a felony
22 punishable by imprisonment in the custody of the Department of
23 Corrections not to exceed eight (8) years, or by a fine not to
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1 exceed One Thousand Dollars (\$1,000.00), or by both such
2 imprisonment and fine.

3 B. It shall be unlawful:

4 1. To remove a shopping cart from the parking area of a retail
5 establishment with the intent to permanently or temporarily deprive
6 the owner of the shopping cart the use of the cart; or

7 2. To be in possession of any shopping cart that has been
8 removed from the parking area of a retail establishment with the
9 intent to permanently or temporarily deprive the owner of the
10 shopping cart the use of the cart.

11 Any person who violates the provisions of this subsection shall,
12 upon conviction, be guilty of a misdemeanor punishable by
13 imprisonment in a county jail not to exceed one (1) year, or by a
14 fine not to exceed One Thousand Dollars (\$1,000.00), or by both such
15 fine and imprisonment.

16 SECTION 2. This act shall become effective November 1, 2025.

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